

AI Governance and Regulation Frameworks in the United States

(Current as of March 2026)

A dark blue diagonal gradient bar that starts from the bottom left and extends towards the top right, covering the lower half of the slide.

Lenses through which Governance & Regulations are viewed

- Executive
- Legislative
- Judiciary
- State-level governance & regulations

Executive

Executive Order 14110 on Safe, Secure, and Trustworthy Artificial Intelligence (2023)

Ensure safe and responsible development of AI technologies.

Key Provisions:

1. AI Safety Testing
2. Cybersecurity Protection
3. Privacy Protection
4. Bias and Fairness
5. Transparency
6. Worker Protection

Legislative (Congress)

- Both bodies of Congress tend to work towards deregulation and bringing the power from the states to the federal level.
- Congress has failed on multiple occasions when trying to present and pass these types of laws. The end results tend to be different with the help of the executive.
- The argument being used is that these laws would protect innovation and the industry from compliance burdens.
- New set of instructions/rules have been passed throughout recent years, explicitly directing officials to integrate the use of artificial intelligence in legislative operations.

Judiciary (The Courts)

In the absence of comprehensive regulation, the courts have emerged as the de facto regulatory force.

The courts are focused on four major domains: Intellectual Property, Algorithmic Liability, AI-Generated Evidence, and the integrity of AI use within the courts themselves.

(1) *Copyright and AI Training Data: Fair Use Evolves*

- The most consequential AI rulings to date concern whether generative AI companies may train their models on copyrighted works

Judiciary (cont'd)

(2) *Algorithmic Liability*

- Federal courts have begun applying existing civil rights law to AI decision-making systems, with significant implications for employers and technology vendors.

(3) *AI Authorship, Identity, and Evidentiary Standards*

- Can AI hold or generate legal rights?

(4) *Within the Courts: Integrity and Accountability*

- Perhaps the most internally disruptive trend is the judiciary's own reckoning with AI use.

The Judicial-Executive Axis and Future Policy Direction

- President Trump's December 2025 executive order, "Ensuring a National Policy Framework for Artificial Intelligence," created a federal AI Litigation Task Force to challenge state AI laws in federal court and directed agencies to preempt conflicting state regulations

State Level Initiatives

1. Colorado - *Consumer Protections for Artificial Intelligence*

- **Status:** Enacted May 17, 2024 (effective June 30, 2026)

2. California – Multiple AI Laws (Leading State)

California has several notable AI-related statutes either enacted or recently passed:

- **AB 2013 – Training Data Disclosure (2024)**
- **Transparency in Frontier AI Act (SB-53, 2025)**

3. New York – Responsible AI Safety and Education Act

- **Status:** Enacted December 19, 2025

4. Tennessee – ELVIS Act (Deepfake/Voice & Image Security)

- **Name:** *Ensuring Likeness Image and Voice Security Act*
- **Effective:** July 1, 2024

5. New Jersey – Criminalization of Deceptive AI-Generated Media

- signed into law on April 2, 2025

State Level Initiatives (cont'd)

Other Notable State AI Laws or Policies

- **Other states with enacted targeted AI laws**
 - **Utah:** AI policy act extending consumer protection laws to certain generative AI applications.
 - **Various states** (e.g., Mississippi, Michigan, Arizona) have *deepfake/election media laws* prohibiting deceptive AI media around elections.

Context: Why State AI Laws Matter

- States have been *very active* in proposing AI legislation, leading to a patchwork of laws across the U.S.
- Only a few states have passed *substantive* AI regulatory frameworks so far..

Reference List

1. Executive Office of the President. (2019). *Executive Order 13859: Maintaining American Leadership in Artificial Intelligence*. [Executive Order 13859—Maintaining American Leadership in Artificial Intelligence | The American Presidency Project](#)
2. Executive Office of the President. (2023). *Executive Order 14110: Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence*. [Executive Order 14110—Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence | The American Presidency Project](#)